

CITY OF BALTIMORE  
ORDINANCE **26-127**  
Council Bill 26-0157

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Introduced by: President Cohen and Councilmembers Parker, Ramos, and Gray  
Cosponsored by: Councilmembers Conway, Middleton, Bullock, Blanchard, Jones, Glover,  
Dorsey, Torrence  
Introduced and read first time: March 9, 2026  
Assigned to: Land Use and Transportation Committee  
Committee Report: Favorable, with amendments  
Council action: Adopted  
Read second time: May 11, 2026

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AN ORDINANCE CONCERNING

Private Detention Centers – Citywide Ban

FOR the purpose of establishing a private detention center as a prohibited use Citywide; defining certain terms; making conforming changes; and providing for a special effective date.

BY repealing and re-ordaining, with amendments,

Article 32 - Zoning

Sections ~~1-209, 1-307(a), and 1-312(p)~~ 1-209 and 1-307(a)

Baltimore City Code

(Edition 2000)

BY renumbering

Article 32 - Zoning

Section 1-311(w) and (x)

to be

Section ~~1-311(y) and (z)~~ 1-311(x) and (y)

Baltimore City Code

(Edition 2000)

BY adding

Article 32 - Zoning

Section 1-311(w)

Baltimore City Code

(Edition 2000)

**SECTION 1. BE IT ORDAINED BY THE MAYOR AND CITY COUNCIL OF BALTIMORE,** That Section 1-311(w) and (x), respectively, of Article 32 - Zoning of the Baltimore City Code be renumbered to be Section ~~1-311(y) and (z)~~ 1-311(x) and (y), respectively.

EXPLANATION: CAPITALS indicate matter added to existing law  
[ Brackets ] indicate matter deleted from existing law  
Underlining indicates matter added to the bill by amendment  
~~Strike-out~~ indicates matter stricken from the bill by amendment or deleted from existing law by amendment

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**SECTION 2. AND BE IT FURTHER ORDAINED,** That the Laws of Baltimore City read as follows:

**Baltimore City Code**

**Article 32. Zoning**

**Title 1. General Provisions**

**Subtitle 2. Rules of Interpretation**

**§ 1-209. Uses prohibited citywide.**

*(a) Application of section.*

This section and its listing of certain prohibited uses:

(1) is not exhaustive; and

(2) may not be construed to imply that any use not listed here is a permitted or conditional use.

*(b) Listing.*

The following uses are prohibited in all zoning districts of the City:

(1) crude oil terminals;

(2) incinerators;

(3) junk or scrap storage and yards;

(4) nuclear power plants;

(5) PRIVATE DETENTION CENTERS;

(6) [(5)] solid waste sanitary landfills;

(7) [(6)] storage on barges and belt conveyor systems used for the transfer of materials, but this prohibition does not apply to the continuous process of unloading or loading processed metal (as defined in § 1-308) for and during its transfer to or from a docked barge or vessel awaiting shipment; and

(8) [(7)] vehicle dismantling facilities.

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Title 1. General Provisions

Subtitle 3. Definitions

§ 1-307. "Government facility" to "Industrial boat repair".

(a) *Government facility.*

(1) *In general.*

"Government facility" means a structure or land that is operated by a government agency.

(2) *Inclusions.*

"Government facility" includes agency offices, storage yards, public works facilities, recreation: indoor, and utility facilities that are operated by a government agency.

(3) *EXCLUSION.*

"GOVERNMENT FACILITY" DOES NOT INCLUDE A PRIVATE DETENTION CENTER.

§ 1-311. "Parapet" to "Processed metal".

(w) *PRIVATE DETENTION CENTER.*

(1) IN GENERAL.

"PRIVATE DETENTION CENTER" MEANS ANY BUILDING, FACILITY, OR STRUCTURE THAT:

(I) ~~(H)~~ IS OWNED OR OPERATED BY A PRIVATE, NONGOVERNMENTAL ENTITY PURSUANT TO AN AGREEMENT WITH A FEDERAL, STATE, OR LOCAL GOVERNMENTAL ENTITY; AND

(II) ~~(2)~~ IS USED, IN WHOLE OR IN PART, TO HOUSE OR DETAIN AN ~~INDIVIDUAL~~: INDIVIDUAL, AT THE DIRECTION OF A GOVERNMENT AGENCY:

(A) ~~(H)~~ PRIOR TO TRIAL OR SENTENCING;

(B) ~~(H)~~ DURING THE TERM OF THE INDIVIDUAL'S SENTENCE;

(C) ~~(H)~~ FOR A FEDERAL IMMIGRATION VIOLATION; OR

(D) ~~(H)~~ FOR ANOTHER JUDICIAL OR ADMINISTRATIVE PROCESS OR PROCEEDING.

(2) EXCLUSIONS.

"PRIVATE DETENTION CENTER" DOES NOT INCLUDE A RESIDENTIAL-CARE FACILITY.

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1 ~~§ 1-312. "Property line" to "Roof deck".~~

2 ~~(p) Residential-care facility:~~

3 ~~(1) IN GENERAL:~~

4 ~~"Residential-care facility" means a group care or similar facility for the 24-hour~~  
5 ~~medical or non-medical care of individuals in need of personal services; supervision;~~  
6 ~~or assistance essential to sustain activities of daily living, or to protect the individual.~~

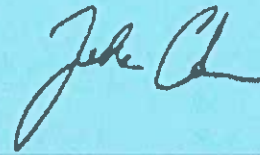
7 ~~(2) EXCLUSION:~~

8 ~~"RESIDENTIAL-CARE FACILITY" DOES NOT INCLUDE A PRIVATE DETENTION CENTER.~~

9 SECTION 3. AND BE IT FURTHER ORDAINED, That this Ordinance takes effect on the date it is  
10 enacted.

**Council Bill 26-0157**

Certified as duly passed this 11th day of May, 20 26



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President, Baltimore City Council

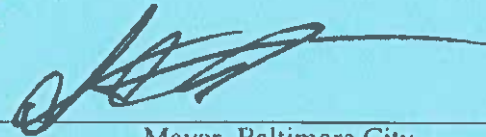
Certified as duly delivered to His Honor, the Mayor,

this 13th day of May, 20 26



\_\_\_\_\_  
Chief Clerk

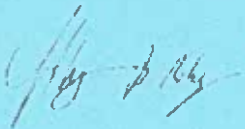
Approved this 16th day of June, 20 26



\_\_\_\_\_  
Mayor, Baltimore City

Approved for Form and Legal Sufficiency,

this 13th day of May, 2026



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Chief Solicitor